1951

F

FAR EASTERN DEPARTMENT

JAPAN

191

FJ 1022/85

FROM

Foreign Office Minute

W. Johnston.

No.

Dated 14th February 1951.

Received in Registry— 17th February 1951.

Japanese Peace Treaty: Position of S.C.A.P., The Dulles Talks, Political Factors, Conclusion and Recommendations.

REFERENCES

(Print)

(How disposed of)

Diff) N. Charter (Tokyo) from W. Johnston 7th Feb 15th

Tel) Tokyo No 262 7th Feb 23rd

MINUTES

See within.

(Action completed)

21/2

(Index)

21/6/51

39318

Secret.

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SECRET

192

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JAPAN: POSITION OF S.C.A.P.

FJ 1022/85

Legal Basis

Sir W. Strang has asked what is the legal basis for the situation under which, while Mr. Dulles can approach the Japanese direct, we have to do so through General MacArthur.

FLAG A

2. The answer to this (already conveyed to Sir W. Strang orally) is as follows. Under the Instrument of Surrender (signed on the 2nd September, 1945), it was laid down that the authority of the Emperor and the Japanese Government to rule the State should be subject to the Supreme Commander for the Allied Powers. This provision was reproduced in the statement

FLAG B

of Basic Post-Surrender Policy for Japan, which was unanimously approved by the Far Eastern Commission on the 19th June, 1947. According to this document (part II, paragraph 2), the Supreme Commander would possess all powers necessary to effectuate the surrender terms and carry out the policies established for the conduct of the occupation and control of Japan. The same document laid down (part II, paragraph 3) that it should be the duty of the Supreme Commander to protect the interests, assets and rights of all members of the United Nations and their nationals. No term was set to this arrangement, beyond

FLAG C

the general principle laid down in Article 7 of the Potsdam Proclamation, that until the required new order was established, and until there was convincing proof that Japan's war-making power was destroyed, points in Japanese territory to be designated by the Allies should be occupied to secure the achievement of the basic objectives set forth in that Proclamation.

3. There is thus no explicit provision preventing Allied Governments from dealing direct with the Japanese Government; nevertheless, it is clear that the Instrument of Surrender, and the statement of Basic Post-Surrender Policy, to both of which we subscribed, envisaged the Supreme Commander as dealing with the Japanese authorities on behalf of all the Allied Powers for the duration of the Occupation. The establishment of any direct channel of contact between, say, H.M. Government in the United Kingdom and the Japanese Government, would in effect amount to a duplication of the Supreme Commander's role in this capacity and would presumably need some amendment of the agreed documents referred to.

The Dulles Talks

4. But of course all this goes equally for the United States, and ~~If~~ when Mr. Dulles does talk direct with the Japanese, it can presumably only be on one of three bases:

(a) The talks are personal and unofficial, not as representing the United States Government, and the Supreme Commander tolerates them as such.

(b) Mr. Dulles <u>does</u> represent the United States Government, which is therefore taking advantage of the fact that the Supreme Commander happens to be a United States citizen and an officer of the U.S. Army.

(c) The Supreme Commander has the right to <u>permit</u> direct talks between the representative of any Allied Government and the Japanese and has exercised this right in favour of

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(b) Mr. Dulles does represent the United States Government, which is therefore taking advantage of the fact that the Supreme Commander happens to be a United States citizen and an officer of the U.S. Army.

(c) The Supreme Commander has the right to permit direct talks between the representative of any Allied Government and the Japanese and has exercised this right in favour of

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Mr. Dulles. This does not mean he necessarily must also exercise it in favour of other Allied Governments, but if he refuses he must do so in good faith and not as an act of discrimination.

Political Factors

5. It may be worth adding a tentative analysis of the political factors involved.

6. The present dispensation, under which we can have no official dealings with the Japanese direct for so long as the Occupation lasts, has the following main disadvantages:

(a) It clearly reduces our influence and prestige with the Japanese for us to be placed in such indirect and secondhand relations with them.

(b) It is illogical and humiliating for us to be deprived of direct contacts with the Japanese in Japan when the Americans expect us to have direct dealings with them on international bodies, such as UNESCO. ~~(Mr. R.H. Scott and Sir W. Strang have emphasised this point in minutes on USE 1002/6.)~~ FLAG D

(c) After five and a half years of peace, our representation in Tokyo ought to be on a normal footing, unhampered by artificial barriers.

(d) All the above arguments apply with increased force in the case of the Peace Treaty negotiations; and yet, as these must ex hypothesi precede the end of the Occupation, they would, under present arrangements, all be channelled through SCAP. (We should perhaps try to draw Mr. Dulles on this point,) ~~please see para. 4(c) below.~~

7. On the other side of the case there are certain practical points to be considered:

(a) If the United Kingdom obtained the means of direct official access to the Japanese in advance of a Peace Treaty, it would be difficult to deny the same right to the other forty-nine States at war with Japan. Apart from the political disadvantages of this as regards Russia or China, any attempt to combine such a system with the existing occupation regime would be bound to lead to confusion.

(b) Agreement between all the Powers concerned on the conditions for direct access to the Japanese would take almost as long to conclude as the Peace Treaty itself and could only be reached at the expense, in time, of the early Treaty which is our objective.

(c) It would also give the Japanese an exaggerated sense of their own importance at an undesirably early stage, and encourage them to play the various Powers concerned off against each other - both processes which might well encourage them to intransigence in the Treaty negotiations.

(d) So long as we can get the substance of our views about the shape of the peace settlement accepted by the Americans, it is arguable that it would be in our interest to leave in American hands the whole responsibility of dealing with the Japanese over the main Treaty negotiations. There are certain subjects, e.g. the procedure for making peace with China, on which it seems convenient for us not to have to take the responsibility of giving direct advice to the Japanese; whereas, given the means of

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Conclusion

8. If the above arguments are sound, the conclusion would seem to be that, so long as an early Treaty appears likely, we should accept the present situation and regard its disadvantages as so many more arguments for an early Treaty. If, however, the Treaty negotiations drag, then the question will have to be reconsidered. If we then decide that, in spite of the arguments in paragraph 7 above, it is in our interest to seek a change in the present arrangement, we may be able to make use of the points made in paragraph 4 above about Mr. Dulles's negotiations with the Japanese, of Mr. Dulles's own admission of the possibility of direct negotiations between us and the Japanese on specific subjects (Tokyo telegram No. 128, paragraph 5, about Japanese assets in Switzerland), and also of the anomaly of UNESCO (paragraph 6(b) above).

FLAG E

Recommendations

9. (a) That we should ask Sir E. Dening in Canberra to find out from Mr. Dulles what procedure he has in mind, as regards the Peace Treaty negotiations, for contacts between the other Parties to the Treaty and the Japanese.

(b) That meanwhile copies of the ~~above memorandum~~ paragraphs 1-8 should be sent to Mr. Graves, Mr. Clutton and Sir E. Dening (in Singapore) for observations by telegraph, in the light of Mr. Dulles's reply on (a).

(c) That when we have their replies we should consider an approach to Commonwealth Governments with a view to getting an agreed line.

(d) That meanwhile, on the UNESCO issue, we should simply tell the United States Embassy that we mean to abstain, and not at present raise the issue of direct access to the Japanese in Japan. (In this connexion please see further minutes on USE 1002/6, showing that Japan will probably not in fact be an effective member of UNESCO until the end of June at the earliest, i.e. at what we hope will be a fairly advanced point in the Treaty negotiations - a point which lessens the force of the anomaly referred to in paragraph 6(b) above.)

FLAG D

The foregoing has been agreed by Mr. Fitzmaurice.

C.H. Johnston.

(C.H. Johnston)
14th February, 1951.

R.A. Scott
14/2.

W.S.
15/2

A.M. 20/2

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Minutes.

Ⓐ Ships. N° 220 of the 22nd Feb.

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Reply sent.

Wm
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SECRET

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[redacted]: [redacted] U.S.S.R.

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5. It may be worth adding a tentative analysis of the political factors involved.

6. The present dispensation, under which we can have no official dealings with the Japanese direct for so long as the Occupation lasts, has the following main disadvantages:

(a) It clearly reduces our influence and prestige with the Japanese for us to be placed in such indirect and secondhand relations with them.

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(c) After five and a half years of peace, our representation in Tokyo ought to be on a normal footing, unhampered by artificial barriers.

(d) All the above arguments apply with increased force in the case of the Peace Treaty negotiations; and yet, as these must ex hypothesi precede the end of the Occupation, they would, under present arrangements, all be channelled through SCAP. (We should perhaps try to draw Mr. Dulles on this point, ~~please see para. 4(a) below.)~~

7. On the other side of the case there are certain practical points to be considered:

(a) If the United Kingdom obtained the means of direct official access to the Japanese in advance of a Peace Treaty, it would be difficult to deny the same right to the ~~other~~ forty-nine States at war with Japan. Apart from the political disadvantages of this as regards Russia or China, any attempt to combine such a system with the existing occupation regime would be bound to lead to confusion.

(b) Agreement between all the Powers concerned on the conditions for direct access to the Japanese would take almost as long to conclude as the Peace Treaty itself and could only be reached at the expense, in time, of the early Treaty which is our objective.

(c) It would also give the Japanese an exaggerated sense of their own importance at an undesirably early stage, and encourage them to play the various Powers concerned off against each other - both processes which might well encourage them to intransigence in the Treaty negotiations.

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Conclusion

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Containing a message for Dening

199

Draft.

~~Top Secret~~
~~Secret~~
Confidential.
~~Restricted~~
~~Unclassified~~

to:

Mr. Graves

Mr. Clutton

from:

Mr. Johnston

copy to:

Sir E. Dening, c/o U.K. Commissioner ~~Gen.~~, ~~Singapore~~. Canberra

The C.R.D.

With reference to ~~our~~ telegram No. ~~—~~ to Canberra, of the 15th February, I enclose a copy of a memorandum prepared in the Department about the position of SCAP in relation to the Japanese Peace Treaty negotiations.

2. I shall be very grateful for your early comments on the enclosed memorandum, [Mr. Graves] by bag, [Mr. Clutton] by ~~telegraph~~ 9, in the light of any reaction which Dening may be able to elicit from the C.R.D. Dulles on the basis of ~~our~~ telegram under reference.

I am sending a similar letter to Clutton / Graves and a copy to Sir E. Dening in ~~Singapore~~ Canberra.

C.H.J.
15.ii.

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Registry No.

Draft. ~~Secret~~ ~~Most Secret~~ Confidential. ~~Restricted~~ ~~Most Secret~~

to:

Mr. Graves

Mr. Clutton

from:

Mr. Johnston

copy to:

Sir E. Dening, c/o U.K. Commissioner ~~Gen.~~, ~~Singapore~~. Canberra

Containing a message for Dening

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With reference to ~~our~~ telegram No. to Canberra of the 15th February, I enclose a copy of a memorandum prepared in the Department about the position of SCAP in relation to the Japanese Peace Treaty negotiations.

2. I shall be very grateful for your early comments on the enclosed memorandum, Mr. Graves by bag, Mr. Clutton by telegraph if, in the light of any reaction which Dening may be able to elicit from the C.R.D. Dulles on the basis of ~~our~~ telegram under reference.

I am sending a similar letter to Clutton / Graves and a copy to Sir E. Dening in Canberra ~~Singapore~~.

C.A.S.
15.ii.

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200

SECRET 15th February, 1951.

No. 151.

My dear Graves

With reference to the Commonwealth Relations Office telegram to Canberra of the 15th February, containing a message for Dening, I enclose a copy of a memorandum prepared in the Department about the position of SCAP in relation to the Japanese Peace Treaty negotiations.

I shall be very grateful for your early comments on the enclosed memorandum, by bag, in the light of any reaction which Dening may be able to elicit from Dulles on the basis of the C.R.O. telegram under reference.

I am sending a similar letter to Clutton in Tokyo and a copy to Dening in Canberra.

(C.H. Johnston)

H.A. Graves, Esq., C.M.G., M.C.,
WASHINGTON.

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[redacted]

15th February, 1951.

My dear Garvan

With reference to the Commonwealth Relations Office telegram No. 151 of the 13th February, containing a message for Bunting, I enclose a copy of a memorandum prepared in this Department about the position of NAU in relation to the Japanese Peace Treaty negotiations.

I shall be very grateful for your early comments on the enclosed memorandum, by bag, in the light of any reaction which Bunting may be able to elicit from Dulles on the basis of the C.R.O. telegram under reference.

I am sending a similar letter to Clutton in Tokyo and a copy to Bunting in Canberra.

(G.E. Johnston)

E.A. Garvan, Esq., C.M.G., M.C.,
[redacted]

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OUT FILE

FJ 1022/83

FOREIGN OFFICE, S.W.1.

SECRET

15th February, 1951.

201

My dear Clutton

With reference to the Commonwealth Relations Office telegram to Canberra of the 15th February, containing a message for Dening, I enclose a copy of a memorandum prepared in the Department about the position of SCAP in relation to the Japanese Peace Treaty negotiations.

I shall be very grateful for your early comments on the enclosed memorandum, by telegraph, in the light of any reaction which Dening may be able to elicit from Dulles on the basis of the C.R.O. telegram under reference.

I am sending a similar letter to Graves in Washington and a copy to Dening in Canberra.

(C.H. Johnston)

G.L. Clutton, Esq., C.M.G.,
TOKYO.

OUT FILE

FJ 1022/6

FOREIGN OFFICE, S.W.1.

SECRET

15th February, 1951.

201

My dear Clutton

With reference to the Commonwealth Relations Office telegram to Canberra of the 15th February, containing a message for Deming, I enclose a copy of a memorandum prepared in this Department about the position of SEATO in relation to the Japanese Peace Treaty negotiations.

I shall be very grateful for your early comments on the enclosed memorandum, by telegraph, in the light of any reaction which Deming may be able to elicit from Pullen on the basis of the C.R.O. telegram under reference.

I am sending a similar letter to Graves in Washington and a copy to Deming in Canberra.

(G.H. Johnston)

G.L. Clutton, Esq., C.M.G.,
YORK.

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22340

7F

202

J1022/85

DWF A/10 HSP TOR 22/1028Z GRS 40 =

CNB

FROM TOKYO =

NO COPIES MADE

Tel 220 to Canberra

22022. MR JOHNSTON'S LETTER OF 15TH FEB. AM I RIGHT IN ASSUMING THAT SIR EDENING ELICITED NO REACTION, SINCE I HAVE NOT SEEN ANY ~~REPLY~~ REPLY TO CRO TEL TO CANBERRA RPTD TO ME AS YR TEL NO 247 =

CLUTTON +

Isl Vo Canberra

TPD AT 22/1050Z FH +

22840

7F

202

J1022/85

CB

DWF A/10 HSP TOR 22/1028Z GRS 40 =

FROM TOKYO =

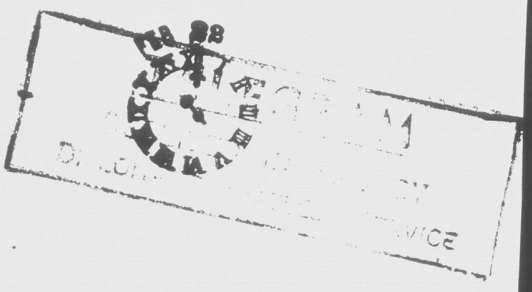
NO COPIES MADE

Tel 2209 to 12

22022. MR JOHNSTON'S LETTER OF 15TH FEB. AM I RIGHT IN ASSUMING THAT SIR EDENING ELICITED NO REACTION. SINCE I HAVE NOT SEEN ANY ~~REPLY~~ REPLY TO CRO TEL TO CANBERRA RPTD TO ME AS YR TEL NO 247 =

CLUTTON +

ISP Vo Canberra



TPD AT 22/1050Z FH +

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NOTHING TO BE WRITTEN IN THIS MARGIN.

Registry No. FJ 1022/85

~~Top Secret.~~
Secret.
Confidential.
~~Restricted.~~
Open.

OUT FILE F.O.,

(Date) 23/2

~~Despatched~~ 12-50 M.

203

Draft. RMM

Telegram to :- Tokyo

No. 262

(Date) 23/2/51

~~Repeat to :-~~

[Security classification —if any]

~~Addressed to~~ Tokyo

~~telegram No.~~ ~~(date)~~

~~repeated for information to~~

Your tel. no. 220 [Saving 22 Feb.]

See bar bena telegram no. 106 of 18th February to ~~C.R.O.~~ Commonwealth Relations Office repeated to, ~~&~~ Saving by bar bena as their no. M 15.

RMM
23/2

En Clair.
~~Code~~
~~Cypher~~
~~Distribution :-~~

~~Files~~ [illegible]

No objs.

11.20am
23/2/51

(27400) W.40591/176 125,000 1/49 A.& E.W.Ltd. Gp.698

NOTHING TO BE WRITTEN IN THIS MARGIN.

Registry No. FJ 1012/85

OUT FILE F.O.

(Date) 23/2

~~Despatched~~ 12.50 ~~P.M.~~

203

~~Top Secret.~~
Secret.
Confidential.
~~Restricted.~~
Open.

Draft. MM

[Security classification —if any]

Telegram to: Tokyo

~~Addressed to~~ Tokyo

~~telegram No.~~ ~~(date)~~

~~Repeated for information to~~

No. 262

(Date) 23/2/51

~~Repeat to:~~

RECEIVED IN C.B.
24 FEB 1951
SENT TO CYPHER

En Clair
~~Code~~
~~Cypher~~
~~Distribution:~~

~~Foreign~~ Commonwealth Relations Office

Your tel. no. 220 [of 22 Feb.]

See Canberra telegram no. 106 of 18th February to ~~C.R.O.~~ Commonwealth Relations Office repeated to ~~Wellington~~ Saving by Canberra as their no. M 15.

MM
23/2

11.20 am
23/2

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